

The Motion to Compel Arbitration and Stay Proceedings Pending Arbitration is **GRANTED**. A proposed order has been lodged with the Court and will be executed. The proceedings are hereby stayed. The Court will set this matter on the resolution review calendar for status of arbitration on **Monday, September 8, 2025, at 9:00 a.m. in Department 64**. The parties are ordered to provide a status report to the Court no later than five court days prior to the hearing.

TD BANK USA, N.A. VS. BASSETT

Case Number: 24CVG-00745

Tentative Ruling on Motion to Deem Requests for Admissions Admitted: Plaintiff TD Bank, N.A. seeks an order deeming the truth of matters specified in Plaintiff's Request for Admissions, Set One, which was served on Defendant Laura Bassett by mail on September 13, 2024. The Motion is unopposed.

When a party fails to respond to a request for admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Here, Plaintiff's moving papers sufficiently demonstrate that the discovery was served by mail and Defendant has failed to respond within the required time frame. The request to deem the matters admitted is granted.

Monetary sanctions are mandatory per CCP 2033.280(c); however, Plaintiff did not seek monetary sanctions and provided no evidence regarding attorney's fees or other costs associated with bringing the motion. Sanctions should only be imposed for "reasonable" expenses. CCP § 2023.030. The Court does not have information upon which to make a finding that any amount of sanctions were for reasonable expenses and will not impose sanctions. The motion is **GRANTED**. A proposed order was lodged with the Court and will be executed.

THE PEOPLE OF THE STATE OF CALIFORNIA VS. \$4,988.00 U.S. CURRENCY

Case Number: 22CV-0201191

Tentative Ruling on Order to Show Cause Re Dismissal of Claim: An Order to Show Cause Re: Dismissal ("OSC") issued on February 4, 2024, pursuant to Gov't Code § 68608(b) to Claimant Marissa Duchi for failure to appear on January 27, 2025, as ordered on December 16, 2024. No response to the OSC has been filed. The Court **DISMISSES** Claimant's Claim Opposing Forfeiture for failure to appear. The clerk is instructed to prepare a separate Order Dismissing the Claim Opposing Forfeiture filed December 12, 2022. Today's 9:00 a.m. review hearing is confirmed.

WYNHOFF VS. CITY OF REDDING

Case Number: 24CV-0204924

Tentative Ruling on Motion for Disclosure of Peace Officer Records: Plaintiff seeks disclosure of Peace Officer records pursuant to Evidence Code sections 1043 and 1045. Defendant City of Redding opposes the Motion.